

1 ENGROSSED HOUSE
2 BILL NO. 4140

By: Manger of the House

3 and

4 Hines of the Senate

5
6 An Act relating to crimes and punishments; amending
7 21 O.S. 2021, Sections 1705, as last amended by
8 Section 247, Chapter 486, O.S.L. 2025 and 1713, as
9 amended by Section 249, Chapter 486, O.S.L. 2025 (21
10 O.S. Supp. 2025, Sections 1705 and 1713), which
11 relate to grand larceny and receiving stolen
12 property; modifying elements of grand larceny and
13 receiving stolen property; and providing an effective
14 date.

15 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

16 SECTION 1. AMENDATORY 21 O.S. 2021, Section 1705, as
17 last amended by Section 247, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
18 2025, Section 1705), is amended to read as follows:

19 Section 1705. A. Grand larceny is a felony punishable as
20 follows:

21 1. If the value of the property is less than One Thousand
22 Dollars (\$1,000.00), the person shall be punished by imprisonment in
23 the county jail for a term not to exceed one (1) year or by
24 incarceration in the county jail for one or more nights or weekends
pursuant to Section 991a-2 of Title 22 of the Oklahoma Statutes, at

1 the option of the court, or by a fine not to exceed One Thousand
2 Dollars (\$1,000.00), or by both such imprisonment and fine;

3 2. If ~~the property is one or more firearms,~~ the property is
4 taken from the person of another, or the value of the property is
5 One Thousand Dollars (\$1,000.00) or more but less than Two Thousand
6 Five Hundred Dollars (\$2,500.00), the person shall be guilty of a
7 Class D3 felony offense and shall be punished by imprisonment as
8 provided for in subsections B through F of Section 20P of this
9 title, or by a fine not to exceed Two Thousand Five Hundred Dollars
10 (\$2,500.00), or by both such imprisonment and fine;

11 3. In the event the value of the property is Two Thousand Five
12 Hundred Dollars (\$2,500.00) or more but less than Fifteen Thousand
13 Dollars (\$15,000.00), the person shall be guilty of a Class D1
14 felony offense and shall be punished by imprisonment as provided for
15 in subsections B through F of Section 20N of this title, or by a
16 fine not to exceed One Thousand Dollars (\$1,000.00), or by both such
17 imprisonment and fine; or

18 4. If the property is one or more firearms or the value of the
19 property is Fifteen Thousand Dollars (\$15,000.00) or more, the
20 person shall be guilty of a Class C2 felony offense and shall be
21 punished by imprisonment as provided for in subsections B through F
22 of Section 20M of this title, or by a fine not to exceed One
23 Thousand Dollars (\$1,000.00), or by both such imprisonment and fine.

1 B. The person shall also be ordered to pay restitution to the
2 victim as provided in Section 991f of Title 22 of the Oklahoma
3 Statutes.

4 SECTION 2. AMENDATORY 21 O.S. 2021, Section 1713, as
5 amended by Section 249, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
6 2024, Section 1713), is amended to read as follows:

7 Section 1713. A. Every person who buys or receives, in any
8 manner, upon any consideration, personal property of a value of One
9 Thousand Dollars (\$1,000.00) or more that has been stolen,
10 embezzled, obtained by false pretense or robbery, knowing or having
11 reasonable cause to believe the same to have been stolen, embezzled,
12 obtained by false pretense, or robbery, or who conceals, withholds,
13 or aids in concealing or withholding such property from the owner
14 shall, upon conviction, be guilty of a felony punishable as follows:

15 1. If the value of the personal property is One Thousand
16 Dollars (\$1,000.00) or more but less than Two Thousand Five Hundred
17 Dollars (\$2,500.00), the person shall be guilty of a Class D3 felony
18 offense and shall be punished by imprisonment as provided for in
19 subsections B through F of Section 20P of this title, or by a fine
20 not to exceed Five Hundred Dollars (\$500.00), or by both such fine
21 and imprisonment;

22 2. If the value of the personal property is Two Thousand Five
23 Hundred Dollars (\$2,500.00) or more but less than Fifteen Thousand
24 Dollars (\$15,000.00), the person shall be guilty of a Class D1

1 felony offense and shall be punished by imprisonment as provided for
2 in subsections B through F of Section 20N of this title, or by a
3 fine not to exceed Five Hundred Dollars (\$500.00), or by both such
4 fine and imprisonment; or

5 3. If the property is one or more firearms or the value of the
6 personal property is Fifteen Thousand Dollars (\$15,000.00) or more,
7 the person shall be guilty of a Class C2 felony offense and shall be
8 punished by imprisonment as provided for in subsections B through F
9 of Section 20M of this title, or by a fine not to exceed Five
10 Hundred Dollars (\$500.00), or by both such imprisonment and fine.

11 B. If the personal property that has been stolen, embezzled,
12 obtained by false pretense or robbery has a value of less than One
13 Thousand Dollars (\$1,000.00), the person shall, upon conviction, be
14 guilty of a misdemeanor punishable by imprisonment in the county
15 jail for a term not to exceed six (6) months.

16 C. Every person who, without making reasonable inquiry, buys,
17 receives, conceals, withholds, or aids in concealing or withholding
18 any property which has been stolen, embezzled, obtained by false
19 pretense or robbery, or otherwise feloniously obtained, under such
20 circumstances as should cause such person to make reasonable inquiry
21 to ascertain that the person from whom such property was bought or
22 received had the legal right to sell or deliver it shall be presumed
23 to have bought or received such property knowing it to have been so
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1 stolen or wrongfully obtained. This presumption may, however, be
2 rebutted by proof.

3 SECTION 3. This act shall become effective November 1, 2026.

4 Passed the House of Representatives the 5th day of March, 2026.

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6 _____
7 Presiding Officer of the House
8 of Representatives

9 Passed the Senate the _____ day of _____, 2026.

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12 Presiding Officer of the Senate
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